

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
HON. Scott A. Steiner

Date: December 18, 2024

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Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5618. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (Lewis v. Fletcher Jones Motor Cars, Inc. (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department N18 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department N18 at the North Justice Center, located at 1275 N. Berkeley Ave., Fullerton, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange) before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange). The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at [Civil Remote Hearings | Superior Court of California | County of Orange \(occourts.org\)](https://occourts.org/Civil-Remote-Hearings-Superior-Court-of-California-County-of-Orange). Those procedures and guidelines will be strictly enforced.

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#	Case Name	Tentative
1	2024-1428404 Morton vs. OC Grooming	Defendant OC Grooming's Demurrer to Plaintiff Robert Norton's Complaint is sustained with 20 days leave to amend. Plaintiff shall have 20 days after notice of this ruling to file an amended complaint. Here, the Complaint is uncertain. There are no causes of action identified, no prayer for relief asserted, and difficult to read handwritten allegations. The Court cannot decipher what claims Plaintiff is trying to allege and Defendant cannot reasonably respond. The Court notes that to be acceptable for filing, a complaint must be drafted in accordance with rules applicable to pleadings generally. (See CRC 2.100-2.119.) A complaint must contain a "statement of the facts constituting the cause of action, in ordinary and concise language", and a "demand for judgment". (CCP § 425.10). Each cause of action (or affirmative defense) should be separately stated, must be separately numbered, and must identify the parties asserting the claim and against whom it is asserted. (CRC 2.112.) The court further notes that litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985; <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th

		1229, 1246-1247.) A self-represented litigant is not entitled to any greater consideration than other litigants and attorneys. (<i>Petrosyan v. Prince Corp.</i> (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal Rules of Court, rule 1.6(15) [defines “parties” as including both self-represented persons and persons represented by an attorney of record without making any distinction between them].) Defendant is ordered to serve notice of this ruling.
2 .	2024- 1396986 Price vs. City of Anaheim	Specially Appearing Defendant National Core’s unopposed motion to quash service of the summons and complaint is GRANTED. “A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc. § 418.10, subd. (a)(1).) When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process, “the burden is on the plaintiff to prove the existence of jurisdiction by proving, <i>inter alia</i>, the facts requisite to an effective service.” (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413 [trial court erred in denying motion to set aside default judgment where plaintiff’s attempted service of process did not substantially comply with requirements for substitute service]; (<i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1160 [“It was incumbent upon plaintiff, after the filing of defendant’s motion to quash, to present evidence discharging her burden to establish the requisites of valid service on defendant”].) Here, Defendant presents evidence that it is not a legal entity and therefore does not exist. (Ortiz Decl., ¶¶ 2-3, Exs. A and B.) Because it does not exist, CSC Lawyers Incorporating Service – the company who purportedly accepted service on it’s behalf, could not accept service. (Id. at ¶¶ 5-6, Ex. D.) Thus, no service can be effectuated upon it. Further, as the motion is unopposed, Plaintiff has failed to meet her burden to prove the existence of jurisdiction on this moving defendant. Service of the summons and complaint on National Core, as reflected in the proof of service filed on 9/20/24 under ROA 17 is hereby QUASHED. Lastly, the Court notes that Hermosa Village Apartments has filed a nearly identical motion set for hearing on 1/15/24. The court <u>strongly encourages</u> the parties to work out their differences informally to avoid the necessity for court intervention, which lessens the burden on the Court and reduces unnecessary expenditure of resources by

		litigants. The moving and responding parties are expected to engage in meaningful meet and confer conversations in person or telephone, <i>not through email</i>, within a reasonable time prior to the 1/15/24 hearing. Should the parties resolve the issues presented in the motion, the motion should be taken off-calendar without delay. Specially appearing defendant shall give notice of the ruling.
5	2023-1328556 Martini vs. Mowlavi	Defendants Arian Mowlavi, M.D., Laguna Surgery Institute, LLC, A.M. Cosmetic Surgery Clinics, Inc. and James Gardner seek an order compelling plaintiff Mildred Martini to arbitrate her claims against them is denied. This is an action for medical malpractice and related claims. Plaintiff alleges that Dr. Mowlavi performed procedures without Plaintiff's consent and allowed unlicensed individuals to provide treatment to Plaintiff, resulting in mutilation of her body. [Second Amended Complaint (ROA #92 – "SAC").] Prior to her procedure, Plaintiff signed an arbitration agreement as to any "claim arising out of or related to all treatment or services provided by the physician" [Tredway Decl. (ROA #960), Ex. 1.] Trial is set for 4/1/25. [ROA ## 63, 66.] This action was commenced on 5/26/23. [ROA #2.] Defendants Mowlavi and Laguna were served with Plaintiff's first amended complaint on 6/16/23. [ROA ## 17, 19.] In November 2023 and April 2024, Defendants served discovery, both subpoenas and nonparties and written discovery to Plaintiff. [Hemesath Decl. (ROA #100), Exs. 1, 2.] Defendants also responded to written discovery. [<i>Id.</i>, Exs. 3-4.] Defendants also posted jury fees and participated in CMCs without indicating that they would seek to arbitrate, even when a trial date was set. [<i>Id.</i>, Exs. 5-8.] Fourteen months after appearing in this action, and five months before trial, Defendants filed their motion to compel arbitration. Arbitration Code Civ. Proc. § 1281.2 provides, <i>inter alia</i>: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, <u>the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists</u>, unless it determines that:

- (a) The right to compel arbitration has been waived by the petitioner; or
- (b) Grounds exist for rescission of the agreement.
- (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. ...”

(Emphasis supplied.)

CRC 3.1330 requires that a petition to compel arbitration or to stay proceedings pursuant to Code Civ. Proc. §1281.2 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim, or a copy must be attached to the petition and incorporated by reference.

“[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement--either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (*see* § 1281.2, subds. (a), (b))--that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.” *Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal. App. 4th 754, 761, quoting *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal. 4th 394, 413.

As a result, the first step in determining whether to grant a petition to compel contractual arbitration is to determine whether there was, in fact, an agreement to arbitrate.

Was There an Agreement to Arbitrate? Yes.

Defendants presented an arbitration agreement with their moving paper and Plaintiff has not disputed its authenticity. [Tredway Decl. (ROA #960), Ex. 1.]

Rather, Plaintiff contends that Defendants waived any right to arbitration, and in any event, the agreement does not comply with Code Civ. Proc. §1295.

Because the court finds that Defendants waived their right to arbitration, it need not address compliance with Code Civ. Proc. §1295 or its preemption under the Federal Arbitration Act (“FAA”).

Waiver

Under both the FAA and the CAA, waiver is to be determined by the same standard as would be applied to any contract and not under an “arbitration-specific rule.” *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562 (overruling *Agnes Medical Center v. PacifiCare of California* (2003) 31 Cal.4th 1187).

In sum, we conclude that the procedural rules of the CAA, like those of the FAA, are grounded in a policy of “treating arbitration [agreements] like all others,” not one preferring arbitration to litigation. (*Morgan, supra*, 596 U.S. at p. 418, 142 S.Ct. 1708.) Accordingly, in determining whether a party to an arbitration agreement has lost the right to arbitrate by litigating the dispute, a court should treat the arbitration agreement as it would any other contract, without applying any special rules based on a policy favoring arbitration. That is, courts should apply the same procedural rules that they would apply to any other contract. (*Ibid.*)

Quach v. California Commerce Club, Inc. (2024) 16 Cal.5th 562, 583.

Accordingly, and in a change of much California case law prior to *Quach*, no showing of prejudice is required to establish waiver. *Id.* at 1136-1138. Rather, “[t]he waiver inquiry is exclusively focused on the waiving party's words or conduct; neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor that party's subjective evaluation of the waiving party's intent is relevant.” *Id.* at 585 (citation omitted).

To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th at 584.

A party may be found to have waived its right to arbitration by delaying any arbitration demand and choosing, instead, to litigate his claims. *See Kokubu v. Sudo* (2022) 76 Cal.App.5th 1074, 1085 (affirming denial of motion to compel arbitration upon finding of waiver: “Until filing their motion to compel in December 2020, Appellants proceeded in the same manner as a party without any right to arbitrate, participating in case management conferences, filing motions, seeking ex parte relief, and seeking and participating in discovery.”)

		Here, there is evidence showing waiver. First, as to knowledge of the contractual right, there is the agreement itself – which Defendants themselves presented. [Tredway Decl. (ROA #960), Ex. 1.] In his reply declaration, Dr. Mowlavi says he did not have access to his files in the beginning of this action because they had been seized by the police. [Mowlavi Decl., ¶ 3.] He does not state, however, that he was unaware of the existence of the arbitration agreement or his right to arbitrate. Moreover, he does not explain when he regained access to his files. As to intentional relinquishment, there is the fact that Defendants proceeded with this action for approximately 16 months --including answer, discovery, and CMCs -- without any assertion of their right to arbitration. [ROA ## 25, 73, 82; Hemesath Decl., Exs. 1-8.] Further, without explanation, Defendants waited until five months before trial to bring their motion to compel arbitration. On these facts, in in line with <i>Kokubu v. Sudo</i> (2022) 76 Cal.App.5th 1074, the court finds that Defendants by pursuing litigation of this case for over a year and waiting until five months before trial to assert a right to arbitration, have waived their right to arbitration. The motion is therefore denied.
6	2023-1351946 Gonzales vs. The Foodware Group	Motion To Compel Further Responses to RFP of Documents The Court grants Plaintiff Corrine Gonzales’ Motion to compel further responses to Requests for Production of Documents, set one, Nos. 1, 2, 22, and 23 from Defendant Costco Wholesale Corporation. Defendant shall provide supplemental verified written responses, without objections, and the documents within 30 days of notice of this order. The Motion is denied as to Nos. 15-21. <u>Legal Standard</u> Code of Civil Procedure section 2031.220 requires a party responding to an inspection demand to respond with (1) a statement that it will comply, (2) a representation that it does not have the ability to comply, or (3) an objection. (Code Civ. Proc., § 2031.220.) An agreement to comply must be rather specific as to what is agreed to. It must state that the production and inspection will be allowed (in whole or in part); and that the documents or things in the demanded category that are in the responding party's possession, custody, or control will be produced. (Code Civ. Proc., § 2031.220.) On receipt of the response, the demanding party may move to compel further response if any of the following apply: (1) a statement of

compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete or evasive; (3) an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

The motion must set forth specific facts showing good cause justifying the discovery. (Code Civ. Proc., § 2031.310, subd. (b).) “Good cause” for production of documents may be established where it is shown that the request is made in good faith and that the documents sought are relevant to the subject matter and material to the issues in the litigation. (*Associated Brewers Distributing Company, Inc. v. Superior Court* (1967) 65 Cal.2d 583, 588).

If good cause is shown, the burden shifts to the responding party to justify any objections made to documents production. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98. It has been held reversible error to deny discovery where the objectives of discovery—preventing surprise at trial and allowing proper preparation for trial—are defeated by the denial. (*Associated Brewers, supra*, at p. 588.)

Merits

As to all these requests, Costco has indicated compliance by identifying specific documents for production. But the responses are not Code-compliant.

The party to whom the CCP § 2031.010 demand is directed must respond separately to each item in the demand by one of the following:

- Agreement to comply: A statement that the party will comply by the date set for inspection with the particular demand for inspection, testing, etc.; or
- Representation of inability to comply: A statement that the party lacks the ability to comply with the particular demand; or
- Objections: An objection to all or part of the demand.

[CCP § 2031.210(a)]

The response must be rather specific as to what is agreed to. It must state:

- That the production and inspection demanded will be allowed (in whole or in part); and
- That the documents or things in the demanded category that are in the responding party's possession, custody or control will be produced.

[CCP § 2031.220]

The responses to Nos. 1, 2, 22, and 23 do not meet these requirements.

The Motion is denied as to Nos. 15-21 because Plaintiff has not shown good cause for the breadth of the documents requested, seeking “all documents” including all communications both internal and external.

Sanctions are denied.

Motion to Compel Further Responses to Special Interrogatories

The Court grants Plaintiff Corrine Gonzales' Motion to compel further responses to Special Interrogatories, set one, Nos. 8, 9, and 10 from Defendant Costco Wholesale Corporation but with *limitations* as provided below. Defendant shall provide supplemental verified written responses, without objections, within 30 days of notice of this order to the interrogatories *as limited*.

Legal Standard

A party may move to compel further responses interrogatories on the grounds that the answer is evasive or incomplete. (Code Civ. Proc., § 2030.300, subd. (a)(1).) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 541 [“While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.”].)

Merits

Defendant has met its burden to show that Nos. 8, 9, and 10 are objectionable as worded.

Therefore, as to Nos. 8 and 9, the Court limits the requests to the 3 years prior to December 2024, to the United States only, for complaints/injuries regarding the same mechanism of injury, and identifying only the complainant's name. Further, discovery can be conducted into the “nature of and substance of their concerns” involving the chaffing dish if warranted.

As to No. 10, Defendant need only provide the name of the plaintiff, jurisdiction, and case number if any lawsuits were filed against it concerning the same mechanism of injury caused by the chaffing dish.

The Court finds *Perkins v. Superior Court* (1981) 118 Cal.App.3d 761, 763 of limited value because the mechanism of injury here is clear, unlike an exploding product.

Plaintiff is ordered to serve notice of this ruling.

7 .	2023- 1334802 McCorkle vs. La Habra Convalesce nt Hospital	Defendant La Habra Post Acute, LLC’s motion to compel further responses of Plaintiff Liza McCorkle to form interrogatories, set one, is denied. Defendant moves for an order compelling Plaintiff to provide a further response to form interrogatory no. 12.1, which requires Plaintiff to identify the witnesses to the “INCIDENT.” Defendant has not indicated that “INCIDENT” was specially or uniquely defined. Although Defendant contends that Plaintiff’s response was “not complete and straightforward,” given the many “circumstances and events” alleged in the Complaint, Plaintiff’s response was reasonable subject to her objection that the interrogatory was overly broad, vague and ambiguous. As explained in Rutter: “The term ‘INCIDENT’ may be ambiguous and confusing where the claim involved is based on multiple phone calls, letters, conversations, etc.” Thus, as a “practice pointer,” Rutter recommends using the option to “define ‘INCIDENT’ with a unique description.” Because it “may avoid the ambiguous and confusing objection.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶¶ 8:933.8-8:933.9.) That “pointer” is applicable, here. Defendant also complains that Plaintiff “does not properly identify any of the witnesses as no address or telephone number is provided in Plaintiff’s responses.” However, Plaintiff’s response stated that she was providing the information to “the best of [her] knowledge.” Plaintiff is not required to provide information she does not have—she is only required to answer “as the information reasonably available” permits. Accordingly, the motion shall be denied without prejudice to Defendant propounding this interrogatory with a narrower definition of “INCIDENT.” Defendant La Habra Post Acute, LLC’s motion to compel further responses of Plaintiff Liza McCorkle to special interrogatories, set one, is granted. Defendant moves for an order compelling Plaintiff to provide further responses to its special interrogatories, set one, nos. 1-6, 8-16, 18-33, 35-39, 42, and 44. The special interrogatories can be divided into two categories. Numbers 1, 3, 5, 11, 13, 15, 18, 20, 22, 24, 26, 28, 30, 32, 37, ask Plaintiff to “state all facts” to support contentions and allegations in the Complaint, i.e., “contention rogs.” While numbers 2, 4, 6, 8, 9, 10, 12, 14, 16, 19, 21, 23, 25, 27, 29, 31, 33, 35, 36, 38, 39, 42, and 44, ask Plaintiff to “IDENTIFY all PERSONS” she believes may have knowledge of those contentions/allegations. In response to the former category, Plaintiff responded with objections and a very long narrative (9 to 10 pages) that basically parrots the “General Allegations” in the
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		complaint. In response to the latter, Plaintiff appears to have identified all the same people at the facilities that she identified in response to form interrogatory no. 12.1. Neither one of these responses is appropriate because they are not drafted to respond to any particular special interrogatory, i.e., they are not “straightforward.” With respect to the first category (“state all facts”), even assuming an answer to a particular interrogatory can be found buried in the response, Defendant is not required to dig through the response to find which statements apply and which do not. The second category suffers from the same defect. While Plaintiff may find it time consuming to “breakdown” the omnibus list in response to each interrogatory, she has not shown it would be unduly burdensome to do so. Again, though, Plaintiff is not required to provide information she does not have—she is only required to answer “as the information reasonably available” permits. In connection with this motion, Defendant shall recover its attorneys’ fees and costs in the amount of \$2,562.50, against Plaintiff and her counsel of record, Moran Law, jointly and severally. The sanctions are payable within 30 days. Plaintiff’s further, verified responses to Defendant’s first set of special interrogatories, nos. 1-6, 8-16, 18-33, 35-39, 42, and 44, are due within 15 days of the notice of ruling. Defendant is ordered to give notice of the ruling.
8	2022-1285266 Chavarria vs. Motale	Defendant Micha Motale’s motion for an order vacating the default entered against him in this action on 8/5/24 is granted. Defendant’s motion is timely and complies with the requirements for relief under Code Civ. Proc. §473(b). It also shows ground for relief for “mistake, inadvertence, surprise or excusable neglect” under section 473(b). Though plaintiff’s counsel had been on contact with Defendant’s counsel to discuss possible resolution, he did not alert Defendant’s counsel that he was going to take Defendant’s default. [Bobroff Decl., ¶ 6.] A plaintiff’s counsel is required to notify the defendant’s counsel, if known, prior to taking the defendant’s default. According to our local COA, this is not merely an ethical duty but a statutory duty. <i>Fasuyi v. Permatex, Inc.</i> (2008) 167 Cal.App.4th 681, 701–702 (reversing order denying relief from default); <i>Lasalle v. Vogel</i> (2019) 36 Cal.App.5th 127, 137 (reversing order denying relief from default).

		The obligation to advise opposing counsel of an impending default is part of an attorney's responsibility to the court and the legal profession and takes precedence over the obligation to represent the client effectively. (<i>LaSalle, supra</i>, 36 Cal.App.5th at pp. 134, 137, 248 Cal.Rptr.3d 263.) That duty, and counsel's responsibility to behave with professional courtesy, existed long before <i>LaSalle</i> was issued. (See <i>id.</i> at pp. 132-135, 248 Cal.Rptr.3d 263.) The <i>LaSalle</i> court not only reaffirmed counsel's ethical duty to warn opposing counsel of an impending default judgment but concluded that obligation is imposed by statute: "So to the extent it was possible for a party seeking a default with unseemly haste to commit an <i>ethical</i> breach without creating a legal issue, that distinction was erased by section 583.130. The ethical obligation to warn opposing counsel of an intent to take a default is now reinforced by a statutory policy that all parties 'cooperate in bringing the action to trial or other disposition.' [Citation.] Quiet speed and unreasonable deadlines do not qualify as 'cooperation' and cannot be accepted by the courts." (<i>Id.</i> at p. 137, 248 Cal.Rptr.3d 263.) Attorneys who do not comply with that obligation are "practicing in contravention of the policy of the state and menacing the future of the profession." (<i>Id.</i> at p. 141, 248 Cal.Rptr.3d 263.) <i>Shapell Socal Rental Properties, LLC v. Chico's FAS, Inc.</i> (2022) 84 Cal.App.5th 166, 213–214 (reversing order denying relief from default). Given Plaintiff's counsel's failure to notify Defendants' counsel that Defendant's default would be taken, and the resulting surprise to Defendant and his counsel, the court exercises its discretion to grant relief under Code Civ. Proc. § 473(b). <i>Shapell Socal Rental Properties, LLC v. Chico's FAS, Inc.</i>, 84 Cal.App.5th at 216-19. <i>See also Credit Managers Assn. v. National Independent Business Alliance</i> 162 Cal. App. 3d at 1173 (reversing denial of relief from default: "Plaintiff was not notified of the assignor's service of process or default being entered before the entry of the default judgment, and was thus taken by surprise."); <i>Baxter v. Prescott</i> (1958) 158 Cal. App. 2d 531, 533-34 (affirming order granting relief from default and finding that ongoing settlement negotiations and absence of warning re default constituted grounds for relief).
9	2024-1400995 Prince vs. GQG Partners LLC	Motion to Quash Motion to Dismiss Case Management Conference Specially Appearing Defendants GQG Partners LLC ("GQG") and Steve Ford ("Ford") (collectively, 'Defendants') seek an order quashing service

of summons on the ground of lack of personal jurisdiction and an order dismissing or staying this action on the ground of *forum non conveniens*.

MOTION TO QUASH

There is no dispute the motion is timely. (Code Civ. Proc., § 418.10, subd. (a).)

Because Plaintiff did not contend the specially appearing defendants are subject to the Court's general jurisdiction, the Court finds Plaintiff conceded that there is no basis for exercising general jurisdiction over Defendants. (*T.A.W. Performance, LLC v. Brembo, S.p.A.* (2020) 53 Cal.App.5th 632, 640.)

Plaintiff's complaint alleges the following causes of action: breach of contract; failure to pay all wages due at termination; and unfair business practices. After these motions were filed, Plaintiff filed a first amended complaint ("FAC") alleging the following causes of action: breach of contract; failure to pay all wages due at termination; breach of covenant of good faith and fair dealing; constructive discharge in violation of public policy; and unfair business practices. The causes of action arise out of the alleged nonpayment of commissions Plaintiff earned through his sales in California, Arizona, and other states and his employment with GQG. Despite the filing of the FAC, Defendants requested the Court proceed with the hearing on these motions. The allegations in the FAC do not affect the analysis of either of these two motions. There was no objection to the evidence presented.

Plaintiff met his initial burden to show GQG purposefully availed itself of forum benefits with respect to the matter in controversy and the controversy is related to or arises out of the GQG's contacts with the forum (*Bristol-Myers Squibb Co. v. Superior Court of California, San Francisco County* (2017) 582 U.S. 255, 256; *Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 447; *ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 209-210 (internal citations omitted); see *Ziller Electronics Lab GmbH v. Superior Court* (1988) 206 Cal.App.3d 1222, 1232-1233; Prince Decl., ROA No. 67, ¶¶ 3-5, 8, 9, and 12.)

A choice of law provision in a specific jurisdiction "may be germane to the jurisdictional analysis." (*T.A.W. Performance, LLC v. Brembo, S.p.A.* (2020) 53 Cal.App.5th 632, 644.) GQG showed the parties entered into a written agreement, titled "Confidential Information, Inventions, and Nonsolicitation Agreement" ("NDA") at the time of Plaintiff was hired. The NDA included a choice of law and forum selection clause, submitting to the jurisdiction of Florida courts. (Butler Decl., Exhibit E, Section 11(a).) There is no dispute the NDA was a condition to Plaintiff's employment. However, the NDA appears to be limited to confidential information obtained while employed by GQG. The NDA is not an employment agreement and does not discuss

compensation, which is what is at issue in this action. Nor does the NDA govern a wrongful discharge claim or breach of covenant of good faith and fair dealing in an employment agreement as alleged in the FAC. GQG did not show the exercise of jurisdiction over it would be unreasonable. (*West Corp. v. Superior Court* (2004) 116 Cal.App.4th 1167, 1178-1179.) Accordingly, the motion to quash is denied as to GQG.

Plaintiff did not meet Plaintiff's burden to show by a preponderance of the evidence that exercising personal jurisdiction over Ford would be reasonable. Plaintiff did not show Ford had any contacts with a California resident, nor did Plaintiff show Ford purposefully availed himself of benefits from California. In addition, Defendants showed Plaintiff did not reside in California while he was employed by GQG (a fact Plaintiff did not dispute), that policies and procedures Ford set in place were subject to a chain of command and were approved by GQG's chairman and CEO, that Ford has been on 5-10 calls with individuals or entities based in California (unrelated to Plaintiff), that Ford was a resident of Tennessee since 2020 and never lived in California, that Ford never personally did any business in California, never directed any activities in his personal capacity to California, and did not own property in California, did not have financial ties to California, and that Ford only traveled to California twice for the purposes of vacation. (Ford Decl., ¶¶ 14, 21, and 24-31.)

Accordingly, the motion as to Ford is granted.

MOTION TO DISMISS AND/OR STAY

As an initial matter, the Court declines to consider the new evidence Defendants submitted in support of their reply. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.)

As discussed above, the Court declines to find Plaintiff's claims in this action, whether as alleged in the complaint or the FAC, are encompassed by the NDA. Accordingly, the forum selection clause does not apply to this action.

In light of the ruling above, the motion to dismiss is moot as to Ford. However, as discussed below, if the Court had determined personal jurisdiction could be properly exercised over Ford, Defendants' motion to dismiss is granted as to both GQG and Ford.

Defendants bear the burden of proof, meaning defendants must provide the trial court with sufficient evidence to enable it to carry out its weighing and balancing analysis. (*National Football League v. Fireman's Fund Ins. Co.* (2013) 216 Cal.App.4th 902, 933, fn. 15.) The quantum of evidence needed to satisfy that burden may vary depending on whether Plaintiff is or is not a California resident and whether

Defendants seek a stay of the action or a dismissal. (*Id.* at 939-940; Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2024 ¶ 3:408.5.)

Plaintiff's choice of forum is entitled only to "due deference." (*National Football League v. Fireman's Fund Insurance Company*, 216 Cal.App.4th at 929-930.) Defendants showed Plaintiff was not a resident of California at the time of his employment, which Plaintiff does not dispute. (Ford Decl., ¶¶ 9, 12-14, and 16.) Defendants contend Plaintiff is not currently a California resident, which Plaintiff does not dispute.

Defendants established the existence of a suitable alternative forum in which a valid judgment may be obtained against Defendants. (*Shiley Inc. v. Superior Court* (1992) 4 Cal.App.4th 126, 131-133; *Am. Cemwood Corp. v. Am. Home Assurance Co.* (2001) 87 Cal.App.4th 431, 433; Ford Decl., ¶¶ 4 and 5.) Defendants do not dispute Ford would be subject to Florida's jurisdiction. (Reply, 9:16-17.) Plaintiff has not shown Plaintiff's action would be procedurally barred in Florida.

Private interest factors relate to where the trial and enforcement of any judgment will be the most expeditious and least expensive. Included are such matters as: (1) access to sources of proof (residence of parties, witnesses, location of physical evidence); (2) cost of obtaining attendance of witnesses; (3) availability of compulsory process for attendance of unwilling witnesses. (*Stangvik v. Shiley Inc.*, (1991) 54 Cal.3d 744, 751 and fn. 3; *Morris v. AGFA Corp.* (2006) 144 Cal.App.4th 1452, 1463-1464.) The public interest factors include: (1) avoiding overburdening local courts with congested calendars, (2) protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern; and (3) weighing the competing interests of California and the alternative jurisdiction in the litigation, which may include such matters as: (a) California's interest in regulating the transaction or activities involved. (*Stangvik v. Shiley Inc.*, *supra*, 54 Cal.3d at 751; *Morris v. AGFA Corp.*, *supra*, 144 Cal.App.4th at 1464.)

Based on a balancing of the public and private factors, the Court finds the matter would be more properly heard in Florida.

Neither party submitted evidence to show the location of proof other than the residence of the parties. Defendants showed GQG is headquartered in California, that its Chairman, CIO, and CEO are based in Florida, and that it does not maintain offices in California. (Ford Decl., ¶¶ 4-6.) Although California does have an interest in protecting persons who work in California, the evidence submitted suggests the parties intended for Florida law to apply to their relationship. (Butler Decl., Exhibit E, Section 11(a).)

Plaintiff has not shown where Plaintiff's witnesses would be located or that California witnesses would be required in this action. Although some of the commissions are based on transactions with customers in California (and the other areas Plaintiff serviced – Arizona, Guam, Hawaii, and Utah), there are also commissions likely at issue in these other territories, including also Alabama, Florida, Georgia, South Carolina, Tennessee, and Puerto Rico, which Plaintiff covered in 2023. (Ford Decl., ¶¶ 10, 15, and 16.) Plaintiff offered no evidence to show the location of physical evidence, which would likely be in Florida. This action is not limited to only commissions earned from California transactions.

As for the application of California law, Plaintiff's contention that the Labor Code "irrefutably applies to work performed in California and that California's employment laws govern work performed within the state, regardless of the residence or domicile of the worker or employer" is inaccurate. Plaintiff cites to *Sullivan v. Oracle Corp.* (2011) 51 Cal.4th 1191, which held Labor Code section 1194 applies to nonresidents working in California. However, the California Supreme Court expressly cautioned that the holding was limited to section 1194 and "presents no issue concerning the applicability of any provision of California wage law other than the provisions governing overtime compensation." (*Sullivan v. Oracle Corp.* (2011) 51 Cal.4th 1191, 1201.) In addition, the California Supreme Court cautioned that "one cannot necessarily assume the same result would obtain for any other aspect of wage law." (*Id.*) Our California Supreme Court has held that the itemized wage statement requirement does not apply to an entity not based in California who employs persons who do not work principally in one state. (*Ward v. United Airlines, Inc.* (2020) 9 Cal.5th 732.)

Plaintiff also cites to Labor Code section 1171.5 to support his contention that the Labor Code applies to him. Contrary to Defendants' contention, Labor Code section 1171.5 does not apply only to nondocumented workers. (*Sullivan v. Oracle Corp.* (2011) 51 Cal.4th 1191, 1197, fn. 3 ["Section 1171.5, however, cannot reasonably be read as speaking only to undocumented workers, given that it was drafted and codified as a general preamble to the wage law and broadly refers to 'all individuals' employed in the state. (*Id.*, subd. (a).) More importantly, no reason exists to believe the Legislature intended to afford stronger protection under the employment laws to persons working illegally than to legal, nonresident workers."].) "Just as Labor Code section 1171.5 weighs against finding nonresidence disqualifying for purposes of applying state labor protections, it also weighs against finding residence to be the sine qua non for purposes of *applying* those protections. The Legislature expressed a clear intent not to have the availability of labor protections turn on legal residency in the state." (*Ward v. United Airlines, Inc.* (2020) 9 Cal.5th 732, 758.)

Although the California Labor Code could apply to Plaintiff's claims, there is no showing that a Florida Court could not apply the California Labor Code in adjudicating Plaintiff's claims. (*Ward v. United Airlines, Inc.* (2020) 9 Cal.5th 732, 755-756 and 760; Ford Decl., ¶¶ 6 and 12; Prince Decl., ¶ 8.)

Plaintiff has not shown the interest a juror pool in California would have in a case involving commissions owed by a non-California entity with no physical presence in California to a nonresident who worked primarily in California, among other states.

Plaintiff did not meet Plaintiff's burden to show a Florida court is unsuitable. (*Hahn v. Diaz-Barba* (2011) 194 CA4th 1177, 1191.)

Accordingly, the motion is granted.

There is no dispute that the parties are not residents of California. Accordingly, the case is dismissed without prejudice. (Code Civ. Proc., § 581 subd. (h); *Century Indemnity Co. v. Bank of America* (1997) 58 Cal.App.4th 408, 411.)

Case Management Conference

In light of the ruling above, the Case Management Conference is vacated.

Specially Appearing Defendants shall give notice unless notice is waived.